

1.

CASE #	CASE NAME	HEARING NAME
CVME2502052	BAMIDELE YAZID vs UNIVERSAL HEALTH SERVICES OF RANCHO SPRINGS, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR KEREENYAGA BAMIDELE YAZID

Tentative Ruling: Appearances required.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2201676	H. vs COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: Defendant County of Riverside's Motion for Summary Judgment is denied.

Defendant County of Riverside's Motion for Summary Adjudication as to the first and fourth issues are granted because the claims of vicarious liability are time-barred, and therefore, the issue as to whether discretionary immunity applies to Plaintiff's vicarious liability claims is moot; it is also granted as to the third issue because non-statutory claims for negligent hiring, supervision and training do not lie against public entities; it is denied as to the second and fifth issues because Plaintiff has established triable issues as to whether the County violated mandatory statutory duties and whether the County had actual knowledge of the abuse.

REQUEST FOR JUDICIAL NOTICE:

The County requests judicial notice of several statutes in effect at the relevant times when the abuse occurred. The request is granted under Evid. Code § 452(b), which provides for judicial notice of legislative enactments.

SUMMARY JUDGMENT

Any party may move for summary judgment in any action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a).) "A defendant's motion for summary judgment should be granted if no triable issue exists as to any material fact and the defendant is entitled to a judgment as a matter of law." (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal. 4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal. 4th 826, 850.) Once the moving party's burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) The moving party's evidence must be